

HOUSE BILL 2523

By Behn

AN ACT to amend Tennessee Code Annotated, Title 63,
Chapter 1, Part 9, relative to health care for
pregnant patients.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Maternal Health Care
Protection Act."

SECTION 2. Tennessee Code Annotated, Section 63-1-903(a), is amended by deleting
"and" at the end of subdivision (a)(2)(A), deleting the period at the end of subdivision (a)(2)(B),
and substituting instead a semicolon, and adding the following as new subdivisions:

(C) Does not permit a healthcare provider to refuse to participate in or pay for
pregnancy-related healthcare procedures, treatments, or services that are within the
scope of the healthcare provider's license and professional obligations; and

(D) Does not permit a healthcare institution or healthcare payer to adopt or
enforce a policy, guideline, or contractual provision that results in the denial of
pregnancy-related healthcare procedures, treatments, or services based on the exercise
of the right described in this subsection (a).

SECTION 3. Tennessee Code Annotated, Section 63-1-902, is amended by adding the
following as new, appropriately designated subdivisions:

() "Pregnancy-related healthcare procedures, treatments, or services":

(A) Means healthcare procedures, treatments, or services provided to a
pregnant patient; and

(B) Includes, but is not limited to:

(i) Emergency medical care;

(ii) Diagnosis, monitoring, and treatment of pregnancy-related conditions or complications;

(iii) Care necessary to prevent serious risk to the pregnant patient's life or health; and

(iv) Standard obstetric, gynecological, prenatal, perinatal, and postpartum care;

() "Pregnant patient" means an individual who is pregnant or who is reasonably believed to be pregnant, regardless of gestational age or pregnancy outcome;

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.